

HCS HBs 3068 & 3049 -- SEX OFFENDER REGISTRY

SPONSOR: Myers

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Crime and Public Safety by a vote of 17 to 0. Voted "Do Pass" by the Standing Committee on Rules-Legislative by a vote of 12 to 0.

The following is a summary of the House Committee Substitute for HBs 3068 & 3049.

This bill modifies provisions relating to the sex offender registry. Instead of listing certain sexual offenses, this bill provides that any person who, since July 1, 1979, has been or is adjudicated for a tier I offense, tier II offense, or tier III offense in this state or in any other state, territory, the District of Columbia, foreign country, or federal, tribal or military jurisdiction will be required to register as a sex offender.

Offenders will be classified as a tier I, tier II, or tier III offender. To the extent more than one tier definition applies, the highest tier will be the applicable tier for the offender. This bill also provides that certain juvenile offenders and certain offenders who live or work in Missouri with registration requirements by other jurisdictions will be assigned a tier, which will be only for the purposes of registration appearance frequency and removal eligibility. The initial determination as to the tier will be made by the registration official and the State Highway Patrol (MSHP) will analyze the tier designation for accuracy.

This bill additionally provides that any sex offender with a primary residence outside of Missouri who has a temporary residence in Missouri in which he or she resides for more than a part-time period must register for the duration of the offender's temporary residency. This bill also provides that a nonresident sex offender who works or is a nonresident student in this state must register in the county where the status requiring registration occurs for the duration of the offender's employment or attendance at any school of higher education as long as the status requiring registration remains active.

The jurisdiction, in addition to the Attorney General, can certify appropriate sex offender treatment programs for purposes of reductions in registration periods. Additionally, if records

of program completion are unavailable, and completion of the program that was required as a term of probation, an order discharging the sex offender from probation, or other record acknowledging satisfactory completion of probation will constitute evidence of successful competition.

This bill modifies provisions relating to removal from registration for a person required to register because of an offense adjudicated in another jurisdiction. The person must file the petition or complaint for removal, termination, or relief from registration, or the declaratory judgment providing for removal, termination, or relief, instead of filing a petition for removal, according to the laws of the adjudicating jurisdiction. Upon the entry of a judgment, rather than a grant of a petition for removal, providing that the person is no longer required to register, the judgment can be registered in this state by providing the information required by current law. Additionally, the person may file a petition for removal from this state's sexual offender registry and satisfy the requirements for removal based on adjudication in another state if certain requirements specified in the bill are satisfied.

Currently, if a petition for removal is denied, no successive petition will be filed for at least five years from the judgment date of a petition. If the denial was based on a statute or law that has since been amended, repealed, or invalidated, a person can file a petition within the five-year period.

This bill repeals the provisions relating to someone being removed from the sex offender registry for certain offenses that were nonsexual in nature as specified in the bill. The bill also modifies the list of offenses that exempts offenders who meet the other requirements provided in current law from registration. An offender will have the burden of proving that the requirements for exemption are met.

The chief law enforcement registration official must enter, rather than forward to MSHP, the completed offender registration forms and related updates into the online sex offender registry within three days. MSHP must ensure the information entered into the registry is accessible through the Missouri Uniform Law Enforcement System and forwarded to the National Crime Information Center. MSHP must also regularly update the web page to remove persons who have been removed or exempted, persons deceased, or persons who have moved out of state. Lastly, this bill modifies certain information related to sex offenders and

the metadata of the sex offender registry that is considered as an open or closed record under Missouri Sunshine Law.

This bill is similar to SB 982 (2026).

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill simply provides clean-up and it restructures the registry, clears up inconsistencies, provides for exemption and process, and it codifies federal court ruling in statute.

Testifying in person for the bill were Representative Myers; Missouri Alliance For Family Restoration.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.